

25AVCV00347 25AVCV00347

County: los-angeles

Division: Civil Law and Motion

Department: A14

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Case Number: 25AVCV00347 Hearing Date: September 11, 2026 Dept: A14

25AVCV00347 Caruso v. Camacho Auto Sales

Notice re commencement of jury trial.

The Court notifies the parties that jury selection will begin on Friday, September 11, 2026. The Court will adjourn for the day at 4:00 p.m.

Due to unforeseen circumstances, the Court will not be in session on Monday, September 14. Jury selection will resume at 10:00 a.m. on --September 15, 2026.

25AVCV00347 MICHELE M. CARUSO vs CAMACHO AUTO

SALES, INC

Rulings on Motions in Limine.

The following are the Court's rulings on the parties'

Motions in Limine ("MILs"). Because the following rulings on the motions

in limine are based upon evidence known at the present time, these

rulings are only tentative and may be subject to change as the evidence

unfolds. (See Scott v. C.R. Bard, Inc. (2014) 231 Cal.App.4th

763.)

PLAINTIFF'S MOTION IN LIMINE NO. 1 TO EXCLUDE EVIDENCE

PLAINTIFF WAS TREATED ON "LIEN BASIS" OR THAT PLAINTIFFS' DOCTORS HAVE A
FINANCIAL INTEREST IN THE LITIGATION.

DENIED. That a treating physician has provided

services secured by a lien on Plaintiff's recovery in the action bears on the

physician's bias and is admissible. (Evid. Code, §§ 721, subd. (b), 780, subd.

(f); see also *Qaadir v. Figueroa* (2021) 67 Cal.App.5th 790,

808 .) Admissibility of lien information for this purpose is not to be used for

arguing that Plaintiff failed to mitigate damages by seeking lien treatment

instead treatment through an insurer if Plaintiff remains responsible for

medical bills. (*Pebbley v. Santa Clara Organics, LLC* (2018) 22

Cal.App.5th 1266, 1269, 1275-1278.)

PLAINTIFF'S MOTION IN LIMINE NO. 2: TO EXCLUDE EVIDENCE

THAT PLAINTIFF WAS REFERRED TO DOCTORS BY AN ATTORNEY.

DENIED in part, GRANTED in part. The evidence is

generally relevant and admissible. (*Qaadir v. Figueroa* (2021) 67

Cal.App.5th 790, 808 ("We agree the referral evidence was relevant

to the question of the reasonable value of the lien-physicians' medical care

because it may show bias or financial incentives on the part of the

lien-physicians. If a lien-physician wants future referrals from a lawyer and

understands that the lawyer benefits from inflating a client's medical bills,

that incentive might encourage the lien-physician to inflate its current bill

to please the lawyer and win future referrals.”.) However, to the extent

Defendant seeks to examine Plaintiff on communications with her attorney regarding

referrals, such examination is precluded by the attorney-client privilege. The

information may come in through examination of the physicians.

PLAINTIFF’S MOTION AND MOTION IN LIMINE NO. 3 TO EXCLUDE

EVIDENCE, TESTIMONY, OR REFERENCE TO THE ILLNESS OR DEATH OF GUSTAVO EFRIAN

CAMACHO’S WIFE OR ANY CLAIM THAT IT CAUSED HIS ABSENCE FROM THE DEALERSHIP.

GRANTED.

DEFENDANT’S MOTION IN LIMINE NO. 1 TO EXCLUDE EVIDENCE OR

REFERENCE TO POST-INCIDENT YELLOW OR REFLECTIVE TAPE ON VEHICLE DISPLAY RAMPS

AS SUBSEQUENT REMEDIAL MEASURES.

GRANTED. Evidence that yellow-and-black tape was

physically added to the ramps after the incident is inadmissible when offered

to prove negligence or culpable conduct. (Evid. Code, sec. 1151.) However, if

Defendant disputes feasibility of high-visibility marking/tape, denies

control/ownership, or offers testimony that warnings were unnecessary,

Plaintiff may seek admission of post-incident tape evidence for the limited

purposes permitted by Evidence Code section 1151 (feasibility, control, or

impeachment), subject to Evidence Code section 352 and a limiting instruction.

(Evid. Code, § 1151; Alcaraz v. Vece (1997) 14 Cal.4th 1149, 1169.)

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